**TOWNSHIP OF LINCOLN**
**CLARE COUNTY**
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## Lincoln Township Zoning Board of Appeals

***TBA*** – Chair
***Cynthia Engelhardt*** – Secretary
***Jerry Bridges*** – Township Board Rep.
***Roger Carey*** – New Appointee
***Marshall Swanson*** – Vice-Chair
***Tamara McCaslin*** – Planning Rep.
***Kim Smith -*** Alternate

***Mary Abbott*** – Zoning Administrator

**Lincoln Township Zoning Board of Appeals**
**Business Meeting**
**Wednesday, May, 23, 2018**

**Pledge Of Allegiance:** Swanson led the pledge.

**Call To Order:** Swanson called the meeting to order at 1900.

**Roll Call:**
**Present – Board Members:** Engelhardt, McCaslin, Swanson, Carey
**Staff:** Zoning Administrator Abbott
**Absent –** Alt. Kim Smith, Township Board Rep. Jerry Bridges

**Approval of Minutes:**
Annual Meeting minutes of April 11, 2018 – It was moved by McCaslin and seconded by Engelhardt to accept the minutes as written. Motion carried with no objections.

**Announcement Of New Board Appointee:** Engelhardt read the announcement of Roger Carey as the new ZBA appointee as presented at the May 14 Township Meeting.

**Election of Officers:** McCaslin nominated Roger Carey as Chairperson for the ZBA. Motion seconded by Engelhardt. Motion passed with no objection.
Carry moved the positions of Vice Chair and Secretary remain the same provided Swanson and Engelhardt are willing to continue in their present positions. Motion seconded by McCaslin. Motion passed with no objection.

**Review Of Bylaws:** Section 5 of the Bylaws was reviewed referencing Article 8 Section 8.2 of the Lincoln Township Zoning Ordinance concluding that: The ZBA is to have five voting members appointed by the Township Board: Three persons from the general population, one Planning Commission member and one Township Board member.

Responsibilities of elected officers were reviewed.

**Preparing Variance Information:** After review of Article 8 of the Lincoln Township Zoning Ordinance and discussion it was concluded: the ZBA Chairman will coordinate with the Zoning Administrator to prepare variance packets for the ZBA.

**Review Of Fact Finding Sheet:** A Fact Finding document, which had been reviewed by the Township lawyer, was presented to the group by Engelhardt. It reflected the seven indicators for a variance request found in the Zoning Ordinance and the form used by variance applicants. Per the suggestion of the lawyer it did not include a yes or no compliance notation, only a comments area.

Carey presented information from Brad Neumann, Government and Public Policy Educator, MSU stating… (The ZBA) must find all practical difficulties yes to deny the variance. With this in mind Carey would like a yes or no to be on the work sheet as well comments.

McCaslin emphasized the need to keep the fact finding sheet compliant with the Ordinance and the applicants form. She stated it may be difficult to have the ZBA's fact finding sheet questions stated as yes or no. Carey stated it would be preferable to include yes or no on the sheet in the event of a court case.

It was concluded Engelhardt will electronically send the form as presented at the meeting to Carey for him to carry forward with the issue.

**Public Comment:** None

**Comments/Questions By ZBA Members:** There was lengthy discussion regarding how to review a variance request stressing looking at all potential areas within the Ordinance. Engelhardt read the announcement made at the May 14 Township Meeting regarding the ZBA March 14, 2018, Variance Request.

McCaslin reminded those present there is a Planning/Zoning training session Thursday, August 16. If interested, we are to contact Carol Majewski.

**Adjournment:** Swanson moved to adjourn; Engelhardt seconded. Motion passed with all in favor. Meeting adjourned at 2030.

Respectfully Submitted,

Cindy Engelhardt, Secretary